Appointment Agreement for Sales Representative

K Energy Save Co., Ltd. (hereinafter referred to as the "Company") and the Sales Representative (hereinafter referred to as the "Representative") hereby enter into this Appointment Agreement (hereinafter referred to as the "Agreement") under the following terms and conditions:

Article 1 (Purpose)

The purpose of this Agreement is to establish the terms and conditions governing the entrustment relationship between the Company and the Representative, including the status of the Representative, compliance requirements, entrusted duties, commission payment standards, and grounds for termination.

Article 2 (Status of the Representative)

2.1 The Representative shall perform the duties entrusted by the Company under this Agreement as an independent business partner.

2.2 The Representative is not an employee under the Labor Standards Act, and no employer-employee relationship shall exist between the Company and the Representative.

2.3 The Representative is not subject to the Company's internal employment rules or personnel regulations.

2.4 The Representative has no authority to enter into contracts or create obligations on behalf of the Company, unless expressly authorized in writing.

Article 3 (Independence of Performance)

The Representative shall independently determine the time, location, and method of performing the entrusted duties. The Company shall not exercise direct command, supervision, or issue specific instructions regarding the Representative's work processes.

Article 4 (Safety and Liability Principles)

4.1 The Representative is responsible for complying with relevant laws and general safety regulations to prevent accidents during the performance of duties.

4.2 The Representative may use safety equipment or take necessary measures at their own discretion.

4.3 The Company shall not be liable for any accidents occurring during the performance of duties, except in cases caused by the Company's willful misconduct or gross negligence.

4.4 The Representative shall bear all civil and criminal liability for damages resulting from their own negligence or failure to comply with safety standards.

4.5 If damage is caused to a customer property during installation, the Representative shall be solely liable to such third party.

4.6 The Representative may obtain personal accident or liability insurance at their own discretion.

Article 5 (Term of Agreement)

5.1 The term of this Agreement shall be one year from the date of execution.

5.2 Unless either party notifies the other in writing of their intent not to renew at least one month prior to the expiration date, this Agreement shall be automatically renewed for an additional year under the same terms and conditions.

Article 6 (Entrusted Duties)

6.1 The Representative shall perform the following:

- Execution and management of sales contracts for existing K-SAVER Electricity Saver products.
- Ancillary duties directly related to sales contracts.
- Other duties as approved in advance by the Company.

6.2 Upon the launch of new products, commission payment terms shall be subject to renegotiation.

Article 7 (Commission)

7.1 The Company shall pay commissions in accordance with the "Supplementary Agreement (Commission Regulations)" established by the Company regarding payment criteria, rates, and timing. The Company may amend such standards with at least 30 days' prior notice.

7.2 Payment criteria are subject to the Company's sales policies and the supplementary agreement.

7.3 The Company reserves the right to adjust commission standards in alignment with corporate policy changes.

7.4 The Company reserves the right to suspend, delay, or withhold commission payments in cases where misconduct or potential loss to the Company is suspected, pending a full investigation.

Article 8: Training

8.1 The Company reserves the right to require the Representative to attend training sessions regarding product knowledge and service standards.

8.2 The Representative shall complete introductory training before commencing operations.

8.3 The Company may suspend sales rights or support if the Representative fails to complete mandatory training.

Article 9: Compliance and Prohibition of Unfair Practices

The Representative shall strictly adhere to the following and refrain from:

9.1 Misrepresentation, exaggerated sales claims, or data falsification.

9.2 Distribution of marketing materials without prior Company approval.

9.3 Disclosure of trade secrets or the Company's confidential pricing policies.

9.4 Unauthorized use of the Company's name or brand for purposes unrelated to this Agreement.

9.5 Non-cooperation during fact-checking procedures regarding customer disputes.

9.6 Engaging in any business that competes with the Company or acting as a representative for similar product categories for one year following the termination of this Agreement.

Article 10: Termination of Agreement

10.1 The Representative may terminate this Agreement at any time via written notice.

10.2 The Company may terminate the Agreement immediately upon the occurrence of any of the following events:

- Falsification of documents (e.g., employment applications, sales reports).
- Actions resulting in legal claims or significant loss to the Company due to the Representative's intent or gross negligence.
- Illegal or unethical acts that defame the Company's reputation.
- Direct acceptance of payments from customers bypassing the Company (deemed a severe breach).

10.3 If the Representative fails to meet sales performance targets (KPIs) for three consecutive months, the Company reserves the right to terminate without compensation.

10.4 Upon expiration or termination, all outstanding obligations and commission rights established prior to the termination date shall remain in full force and effect.

Article 11: Damages and Indemnity

11.1 The Company reserves the right to claim damages or seek indemnification for losses caused by the Representative's intent or negligence.

11.2 Liability for damages incurred prior to termination remains in effect until fully resolved.

11.3 If the Company terminates the Agreement without reasonable cause, the Representative may claim damages for resulting losses.

Article 12: Tax Liability

The Representative shall be solely responsible for all taxes and fees arising from any commission or income received from the Company.

Article 13: Guarantee and Bonds

13.1 Upon execution or Company request, the Representative shall submit a fidelity bond or Performance Bond in the amount specified by the Company, or provide notarized certification.

13.2 Failure to provide the required bonds may result in the limitation of duties or termination of this Agreement.

13.3 The Company may, at its discretion, allow an opportunity for explanation prior to taking action regarding the lack of bond submission.

Article 14: Dispute Resolution

14.1 In the event of any dispute, the Company and the Representative shall first attempt to resolve the matter through good-faith negotiations.

14.2 If no mutual agreement is reached, the dispute shall be submitted to the jurisdiction of the court where the Company's headquarters is located or the court having jurisdiction over the Representative's residence.

Article 15: Effective Date

This Agreement shall become effective on [Date] ....and shall remain in effect thereafter.

Article 16: Miscellaneous Provisions

16.1 Upon the expiration or termination of this Agreement, the Representative shall immediately return all corporate assets, including documents, funds, training materials, and digital data belonging to the Company (or its affiliates). The Representative hereby acknowledge and agrees to all terms stipulated in this Agreement.

16.2 This Agreement is executed in duplicate. Each party shall retain one original copy as evidence of the agreement.

[Supplementary Agreement: Commission Payment and Chargeback Policy]

Article 2-2: Remuneration Calculation Criteria

1. Existing Product Line: 30% of Total Sales (Pre-tax).
    - Note**:** If the Headquarters is required to conduct on-site surveys and manage the entire installation process, the commission shall be adjusted to 20%. (This applies when the Representative provides customer referrals only).
2. New Product Line: Subject to a separate written agreement.

3. All final commission calculations are determined by the Company’s automated computing system.

Article 4: Payment Terms and Conditions

1. Commission Eligibility: Payment shall be processed upon the fulfillment of the following:
    - Full payment has been received by the Company or the financing entity.
    - Installation and post-performance measurements are complete.
    - Final performance reports have been submitted to the customer.
2. Post-Termination Payments**:** Upon termination of the Representative's status, commissions will only be paid for sales where:
    - The customer has settled the balance in full.
    - Installation and handovers are completed.
    - There are no outstanding disputes or grievances. The Company reserves the right to audit the accuracy of sales records prior to disbursement and may withhold payment if irregularities are identified until the verification process is complete.

Article 6: Commission Recovery (Chargeback Policy)

The Company reserves the right to reclaim previously paid commissions under the following circumstances:

- Contract cancellation or non-payment by the customer.
- Sales resulting from falsified or inaccurate data.
- Installation or services that fail to meet the Company’s quality standards.

Recovery Procedures:

- Reclamation shall be executed via deduction from future commission payments.
- In cases where future commissions are insufficient, the Company may seek recovery through performance bonds, guarantors, or legal claims for actual damages.
- The Company shall implement a security deposit/bond system at a rate appropriate to the sales volume, with specific details provided in writing. The Company shall provide the Representative with detailed reasons and documentation prior to initiating any recovery action.

[Operational Equipment Requirements for Branch/Office Opening]

1. Purpose: To ensure seamless operational performance.

- Hair Dryer Test Box (1 set)
- Voltage/Current Tester (1 set)
- Product Catalogs (100 sets), Large Envelopes (100 units), Business Cards (200 units)
- High-Precision Power Meter (1 set - Rental basis)
- Complimentary Support: On-site operational training by the Technical Team for the first three sessions.

Equipment Acquisition Costs: 42,000 THB (excluding VAT).

Note: If the Dealer opts not to purchase the equipment set, the Commission rate shall be adjusted from 30% to 15%.

2. Technical Team Support Fees (Effective after the first 3 complimentary sessions):

- Technical and Sales Support: 4,000 THB (excluding accommodation and additional travel expenses).
- Payment shell be maid prior to on-site deployment. The Parties may alternatively agree to deduct these fees from the final contract value.

K Energy Save Co., Ltd

.... Company

(..)

.... Sales Representative

(..)

.... Witness .... Witness

(..) (..)